

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501205	OWIESY vs AMERICA WEST PROPERTIES, INC.	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.) A defendant can meet the initial burden by showing that one or more elements of the causes of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

Movants' evidentiary objections

The Court **OVERRULES**: 3, 4, 5, 6, 13, and 14 as meritless.

The Court **SUSTAINS**: 1 (legal conclusion), 2 (hearsay), 7 (failure to cite), 8 (misstates evidence), 9 (legal conclusion), 10 (lacks foundation), 11 (relevance), 12 (relevance), and 15 (argumentative).

Improper Separate Statement Format

"An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the

evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers.” (Cal. Rules of Court, rule 3.1350(f)(2); see also *Hodjat v. State Farm* (2012) 211 Cal.App.4th 1, 8.) Here, although Plaintiff disputes Defendants’ Undisputed Facts (“UF”) #7, 8, 9, 11, and 18, Plaintiff does not list the supporting evidence to dispute. Thus, these UF are truly not disputed.

Plaintiff disputes UF #11, which states, “On or about March 6, 2023, Plaintiff alleges to have slipped and fallen on water in the office space he leased per the Lease.” However, this is not a true dispute because Plaintiff responds, “On or about March 6, 2023, Plaintiff slipped and fell while in his office unit at Defendants’ property located at 802 Magnolia Ave., Suite 106, Corona, California 92879.” This is not truly a dispute because Plaintiff does not dispute UF #1, which provides the foregoing address as the office unit Plaintiff leased.

“The opposing party’s responses to the separate statement must be in good faith, responsive and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists.” (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876-876, emphasis added.) “Courts should...not hesitate to disregard attempts to game the system by the opposing party claiming facts are ‘disputed’ when the uncontroverted evidence clearly shows otherwise.” (*Id.* at 876.)

Plaintiff asserts an objection to UF #18 and 20. California Rules of Court, rule 3.1354(b) provides, in part, that “[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement.” Plaintiff’s objection also does not reference the Evidence Code next to the ground for objection. (See Cal. Rules of Court, rule 3.1354(b).) The Court disregards Plaintiff’s objection.

Accordingly, analysis on the merits was done by reliance on the evidence in support of the UF to determine if there truly is a factual dispute.

Plaintiff’s Complaint contains two causes of action that are premised upon the same factual allegations: negligence and premises liability.

The elements of a cause of action for negligence are: (1) defendant’s legal duty of care toward plaintiff, (2) defendant’s breach of duty (the negligent act or omission), (3) injury to plaintiff as a result of the breach (proximate or legal cause), and (4) damage to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

Premises liability is a form of negligence wherein the owner of the premises is under a duty to exercise reasonable care in the management of such premises to avoid exposing persons to an unreasonable risk of harm. (Civ. Code § 1714, subd. (a); *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) To establish premises liability, a plaintiff must prove (a) the defendant was the owner, occupier, or lessor of the premises, (b) the defendant was negligent in the use, maintenance, or management of the premises, and (c) that the negligence was the cause of injury, damage, loss, or harm to the plaintiff. (*Brooks, supra*, 215 Cal.App.3d at 1619.)

To prove an unsafe condition of property, plaintiff must prove: (1) a condition on the premises created an unreasonable risk of harm; (2) defendant knew, or in the exercise of reasonable care, should have known about it; and (3) defendant failed to repair the condition, protect against harm from the condition, or give adequate warning of the condition. (See *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206.)

Duty / Release / Waiver

A release is the relinquishment, concession, or giving up of a right, claim, or privilege by the person in whom it exists or to whom it accrues to the person against whom it might have been demanded or enforced. (*Commercial Ins. Co. of Newark, N.J. v. Copeland* (1967) 248 Cal.App.2d 561, 565 (“*Copeland*”).) A release may negate the duty element of a negligence action. (*Benedek v. PLC Santa Monica* (2004) 104 Cal.App.4th 1351, 1356.) A waiver is the intentional relinquishment of a known right after knowledge of the facts. (*Copeland, supra*, 248 Cal.App.2d at 565.) The legal effect of a release is also the relinquishment of rights such that it is a waiver. (*Ibid.*) In summary judgment, the defendant bears the burden of establishing the validity of a release. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 554.)

It is undisputed that on March 7, 2011, Plaintiff signed a Standard Multi-Tenant Office Lease – Modified Gross” (the “Lease”) for the Premises as a Lessee with the former property owner, RCP. (UF #1, 3.) Plaintiff was notified that RCP later sold the building to Guochang, who assumed all rights and responsibilities as Lessor under the Lease. (UF #3-4.) On or about July 31, 2017, Guochang entered into a “Property Management Agreement” with AWP. (UF #10.) Plaintiff paid rent pursuant to the Lease terms. (UF #6.) It is undisputed that on March 6, 2023, Plaintiff alleges to have slipped and fell on water in the office space he leased. (UF #11.)

The Release provides, in relevant part:

8.8 Exemption of Lessor and its Agents from Liability. Notwithstanding the negligence or breach of this Lease by Lessor or its agents, neither Lessor nor its agents shall be liable under any circumstances for: (i) injury or damage to the person or goods, wares, merchandise or other property of Lessee, Lessee’s employees, contractors, invitees, customers, or any other person in or about the Premises, whether such damage or injury is caused by or results from fire, steam, electricity, gas, water or rain, indoor air quality, the presence of mold or from the breakage, leakage, obstruction or other

defects of pipes, fire sprinklers, wires, appliances, plumbing, HVAC or lighting fixtures, or from any other cause, whether the said injury or damage results from conditions arising upon the Premises or upon other portions of the Building, or from other sources or places, (ii) any damages arising from any act or neglect of any other tenant of Lessor or from the failure of Lessor or its agents to enforce the provisions of any other lease in the Project, or (iii) injury to Lessee's business or for any loss of income or profit therefrom. Instead, it is intended that Lessee's sole recourse in the event of such damage or injury be to file a claim on the insurance policy(ies) that lessee is required to maintain pursuant to the provisions of paragraph 8.

(Defendant Appendix of Evidence ("DAOE"), Albright Decl., Exh. A, "Lease", ¶8.8, emphasis included.) Under the Lease that was in force and effect on the day of Plaintiff's injury, Plaintiff is considered the Lessee, Gouchang is the Lessor, and AWP is considered the agent of the Lessor. (UF #15-18.)

Clear and Unambiguous

Contract principles apply when interpreting a release and determination of such is a legal question. (*Ibid.*) To be effective, such a release must be clear, unambiguous, and explicit. (*Id.*) Like any agreement, a waiver or release agreement is subject to ordinary contract defenses. (*Jimenez v. 24 Hour Fitness USA, Inc.* (2015) 237 Cal.App.4th 546, 562-564 [triable issue existed on fraud defense because defendant aware that customer who signed English-language release did not understand English].) So long as the express agreement to assume a risk does not violate public policy, it will be upheld and will constitute a complete bar to a negligence cause of action. (*Madison v. Superior Court* (1988) 203 Cal.App.3d 589.) "When parties intend for an express assumption of risk provision to exceed the inherent risk of the endeavor for which the release is signed, it is especially important for parties to clearly, explicitly and comprehensibly state the inclusion of noninherent risks." (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1289.)

Plaintiff argues the Release is unclear and ambiguous because the clause was placed in the middle of the document and in size 8 font size, the same font size used throughout the lease. Plaintiff cites *Leon v. Family Fitness Center (No. 107), Inc.* (1998) 61 Cal.App.4th 1227, 1234 ["An express release is not enforceable if it is not easily readable...not distinguished from other sections, if printed in the same typeface as the remainder of the document, and if not likely to attract attention because it is placed in the middle of a document."].) However, while "print size is an important factor, it is not the only one to be considered in assessing the adequacy of a document as a release. (*Id.*) The *Leon* court found the release clause in dispute inadequate because it was not prefaced by a heading to alert the reader it is an exculpatory release, contained no bold lettering, is in the same smaller font size as most of the document, and contained no clear and explicit language expressing intent of release. (*Id.* at 1233.) In contrast, the Release here is prefaced by a bolded heading to put the reader on notice of release, i.e. Exemption of Lessor and its Agents from Liability. (Agreement, ¶8.8.) Accordingly, there

is language to alert a reader of a release that is clear and explicit in expressing intent of release. (*Leon, supra*, 61 Cal.App.4th at 1233, citing *Ferrell v. Southern Nevada Off-Road Enthusiasts, Ltd.* (1983) 147 Cal.App.3d 309, 317.) Thus, Plaintiff's argument is unavailing.

Plaintiff contends the Release is not enforceable because pipes bursting in the ceiling and gushing water into Plaintiff's adjoining unit, the injury-producing act, is too remote from the object and purpose for which Plaintiff signed the release. Plaintiff asserts the object and purpose of the release was to allow Plaintiff quiet enjoyment of the unit. While Plaintiff acknowledges the release specifically mentions plumbing, according to Plaintiff, this is still too vague and ambiguous a term. However, Plaintiff presents no evidence to support this argument. Plaintiff cites to *Leon, supra*, 61 Cal.App.4th at 1234. However, the release in *Leon* involved an assumption of risk in a retail installment contract for a sport or physical exercise, distinguishable from the agreement here.

Here, the Release explicitly states "neither Lessor nor its agents shall be liable under any circumstances for: (i) injury or damage to the person or goods, wares, merchandise or other property of Lessee...whether such damage or injury is caused by...water...from the breakage...or other defects of pipes... from conditions arising upon the Premises or upon other portions of the Building..." (Lease, ¶8.8.) This language is unambiguous and directly encompasses the injury Plaintiff alleges. Plaintiff's incident triggers the application of the Release clause.

Unconscionability

Plaintiff argues the Lease is unconscionable because it is overly harsh and one-sided in Movants' favor, with no benefits to Plaintiff or separate consideration in bargained for exchange of Plaintiff's right to redress. Plaintiff contends the Lease completely absolves Defendants of liability in negligence arising under any circumstance. Plaintiff asserts the release is procedurally unconscionable because it was hidden in the middle of the lease and was presented in a take it or leave it non-negotiable term of the lease. Defendants disagree, arguing unconscionability applies differently to commercial leases between sophisticated parties than to consumer contracts. Defendants present a persuasive argument.

"Unconscionable arbitration agreements are not enforceable." (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) "To be voided on this ground, the agreement must be both procedurally and substantively unconscionable." (*Ibid.*) "But they need not be present to the same degree." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (Armendariz).) Rather, the court invokes a "sliding scale" to determine unconscionability: "The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Ibid.*) "The burden of proving unconscionability rests upon the party asserting it." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) Unconscionability is a question of law. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1562.)

Procedural unconscionability may be proven by showing of oppression which is present when a party is given no meaningful opportunity to negotiate the terms of the contract which is presented on a take-it-or-leave-it basis. (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1246.)

The existence of a take it or leave it adhesive contract does not, as a matter of law, render it unenforceable: substantive unconscionability must still be found. (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.) However, Plaintiff's argument that he had no opportunity to negotiate is not supported by the evidence where it is Plaintiff's burden to prove unconscionability. Plaintiff failed to submit any evidence to establish this fact, i.e. no declaration attesting to such. Therefore, Plaintiff's contentions are unsupported.

Plaintiff also argues the Agreement is unenforceable on grounds of substantive unconscionability because the Lease completely absolves Defendants of liability in negligence arising under any circumstance.

"Substantive unconscionability addresses the fairness of the terms in dispute." (*Wherry v. Award, Inc.*, *supra*, 192 Cal.App.4th at 1248.) Because Plaintiff failed to present evidence that he had no opportunity to negotiate the terms of the contract, one who assents to a contract is bound by its provisions. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 710.)

Gross Negligence

A release cannot exculpate a party from gross negligence, i.e., failure to adhere to even a minimal standard of care. Public policy precludes agreements that shelter a party from its own aggravated misconduct; thus a release exculpating a party from negligence liability does not extend to gross negligence. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 776-777 ("*Santa Barbara*"); *Jimenez, supra*, 237 Cal.App.4th at 554-555.) Gross negligence is defined in California as either a "want of even scant care" or "an extreme departure from the ordinary standard of conduct." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186.) Gross negligence "connotes such a lack of care as may be presumed to indicate a passive and indifferent attitude toward results." (*Eriksson v. Nunnink* (2011) 191 Cal.App.4th 826, 857, quoting *Calvillo-Silva v. Home Grocery* (1998) 19 Cal.4th 714, 729.) Failure to follow an industry's standard safety practices can constitute gross negligence. (*Jimenez, supra*, 237 Cal.App.4th at 557.)

Generally, whether an act constitutes gross negligence is an issue of fact; however, summary judgment may be granted where the complaint alleges no facts showing an extreme departure from the ordinary standard of care. (*Santa Barbara, supra*, 41 Cal.4th at 767.) To plead gross negligence, the plaintiff must plead the traditional elements of negligence, duty, breach, causation and damages, as well as extreme conduct on the part of the defendant. (*Rosencrans, supra*, 192 Cal.App.4th at 1082.)

Here, Plaintiff contends Defendants' conduct constituted gross negligence, which would preclude Defendants' reliance on the Release to absolve it from liability. In reply, Defendants argue Plaintiff cannot raise gross negligence for the first time in opposition papers. Defendants point out the Complaint alleges only general negligence and premises liability based on alleged failures to maintain, repair, inspect, and warn but contains no allegation of gross negligence or willful misconduct. Defendants contend Plaintiff is bound by the allegations in the Complaint and that it is improper to expand the scope of liability through an opposition brief.

In a motion for summary judgment, the complaint limits the issues. A plaintiff opposing such a motion cannot defeat it by proffering new, unpleaded theories or issues. (*Laabs v. City of Victorville* (2008) 163 Cal.App.5th 1242, 1247; *Zimmerman, Rosenfield, Gersh & Leeds LLP v. Larson* (2005) 131 Cal.App.4th 1466, 1489.)

The Complaint here alleges, "Defendants' careless, negligent, reckless, and unlawful conduct in regards to maintaining, operating, patrolling, servicing, facilitating, inspecting, and/or controlling the Premises was the legal, direct, and proximate cause of Plaintiff's injuries... Defendants created this dangerous condition and/or failed to take remedial action to remove said dangerous condition..." (Compl., pg. 5.) Accordingly, while the Complaint pleads the traditional elements of negligence, it fails to plead allegations constituting extreme conduct to allow Plaintiff to argue gross negligence. (*Rosencrans, supra*, 192 Cal.App.4th at 1082; *Santa Barbara, supra*, 41 Cal.4th at 767.) Thus, evidence and argument regarding extreme conduct are irrelevant to the present motion because that claim is outside the scope of the pleadings. (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444.)

Thus, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

Continuance / Code of Civil Procedure section 437c, subdivision (h)

Plaintiff's opposition filed on August 17, 2026 is duplicative of the opposition filed in June in that Plaintiff again relies on Code of Civil Procedure section 437c, subdivision (h), which provides:

If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication or both that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made ex parte motion at any time on or before the date the opposition response to the motion is due.

(Code Civ. Proc., § 437c, subd. (h).)

Continuance of a summary judgment hearing is not mandatory when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h). (*Park v. First American Title Co.* (2011) 201 Cal.App.4th 1418, 1428.) Plaintiff requests a continuance to permit review of Defendants' May 11, 2026 discovery responses and documents produced therewith. (Young Decl., ¶3.) Young testified that Defendants' responses confirm evidence to prepare Plaintiff's opposition to MSJ is relevant, that it exists, and is within the knowledge and possession of Movants' PMQ. (*Ibid.*) Plaintiff claims undue prejudice without such evidence. (*Ibid.*) Young asserts there was no undue delay by Plaintiff in seeking to obtain the evidence given Young only recently joined the firm and assumed responsibility for this case after prior counsel departed the firm. (*Id.* at ¶4.)

However, the Court granted a continuance based on Plaintiff's request under section 437c, subdivision (h), in June. Plaintiff failed to present evidence addressing Defendants' May 11, 2026 discovery. Plaintiff failed to present a triable issue of material fact.

The motion for summary judgment is granted. A hearing re: proposed judgment is set for September 14, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than August 31, 2026. The proposed judgment must include dispositions as to ALL parties. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 10, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505990	SANCHEZ vs STARBUCKS CORPORATION	MOTION FOR PREFERENTIAL TRIAL SETTING

Tentative Ruling:

Plaintiff brings this motion pursuant to CCP §36(a), which provides that a party who is over 70 years of age may petition the court for preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole and (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512,